FREE LEGAL GUIDE #6

Defending Against False Section 85 BNS Complaints

Protecting yourself and your family from misuse of matrimonial cruelty provisions

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Defending Against False Section 85 BNS / 498A Complaints

Section 85 of the Bharatiya Nyaya Sanhita (BNS) 2023 replaced Section 498A IPC — the offence of cruelty by a husband or his relatives towards a wife. When used legitimately, it protects genuine victims of domestic abuse. However, it is also frequently misused as a tool in matrimonial disputes. This guide explains the law and your defence options.

WARNING: Section 85 BNS is a cognisable, non-bailable, and non-compoundable offence. Arrest can happen without a warrant. Even a false complaint can lead to arrest of the accused and their family. Take any notice or complaint extremely seriously and act immediately.

WHAT IS SECTION 85 BNS (FORMERLY 498A IPC)?

Section 85 BNS punishes cruelty by a husband or his relatives towards a wife. 'Cruelty' includes physical or mental cruelty, and any conduct that is likely to drive a woman to suicide or cause grave injury to her health. It also includes harassment for dowry. The punishment is imprisonment up to 3 years plus fine.

GROUNDS ON WHICH FALSE 498A CASES ARE FILED

- As leverage in divorce or maintenance proceedings
- To gain custody of children by discrediting the husband and his family
- Over property disputes between the husband's family and the wife
- Retaliation after a divorce petition is filed by the husband
- Pressure to extract a settlement amount or maintenance
- Involving husband's parents, siblings, and relatives who had no role in marital discord

SUPREME COURT GUIDELINES ON SECTION 498A ARRESTS

In Arnesh Kumar v. State of Bihar (2014), the Supreme Court directed that arrests in Section 498A / Section 85 BNS cases should not be made automatically. Police must satisfy themselves of the necessity of arrest using the criteria in Section 35 BNSS. Magistrates must apply judicial mind before remanding accused to custody. Any violation of this direction can be challenged in High Court.

DEFENCE STRATEGIES IN SECTION 85 BNS CASES

● Anticipatory Bail — File Before Arrest

The most important immediate step is to file for anticipatory bail at the Sessions Court or Bombay High Court. Arnesh Kumar guidelines significantly assist bail applications in Section 85 BNS cases,

particularly when the complaint appears to be motivated.

● FIR Quashing — Bombay High Court Writ Petition

Under Section 528 BNSS (formerly Section 482 CrPC), the Bombay High Court can quash an FIR where: the allegations do not make out an offence; they are clearly false or motivated; or where a settlement has been reached. This is often the most effective long-term strategy.

● Challenge the Scope of Complaint Against Relatives

Courts have consistently held that sweeping allegations against all relatives of the husband, without specific allegations against each person, are not sustainable. Your lawyer can apply for discharge of those relatives against whom no specific conduct is alleged.

● Section 86 BNS — Compounding with Permission

Unlike the old 498A which was non-compoundable, Section 85/86 BNS allows compounding with the permission of the High Court. If a settlement is reached between parties, this route can lead to quashing of the case entirely.

● Evidence Gathering

Preserve all WhatsApp chats, emails, call logs, and any communications between you and the complainant. Evidence of financial demands, settlement negotiations, or contradictions in the complainant's own statements can significantly undermine the prosecution's case.

● Mediation

In matrimonial disputes, mediation before a Family Court or a court-appointed mediator can resolve the underlying dispute and lead to withdrawal or quashing of the complaint. Many Section 85 BNS cases are ultimately resolved through negotiated settlement.

IMMEDIATE STEPS IF A COMPLAINT IS FILED OR EXPECTED

- ■ Contact a criminal lawyer immediately — do not wait for police to arrive
- ■ File for anticipatory bail before arrest is made
- ■ Preserve all evidence: chats, emails, call records, financial records, photos
- ■ Do not contact the complainant directly — it can be used as evidence of harassment
- ■ Make a list of all witnesses who can speak to the nature of the matrimonial relationship
- ■ Gather documents showing financial contributions to the matrimonial home
- ■ Review all social media activity — the complainant may use posts as evidence

> A Section 85 BNS FIR does not automatically mean conviction — or even arrest, if you act quickly. Courts have developed significant safeguards against misuse of these provisions. With experienced legal representation, the prospects of a favourable outcome are substantially higher than most accused persons realise at the time of the complaint.

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